

Essex County Council
Green Infrastructure
Environment & Climate Action
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Amy Lang
Tendring District Council
Planning Services

Date: 22/07/2025
Our Ref: GI - 000234
Your Ref: 25/01011/OUT

Consultation Response – 25/01011/OUT Land to The West of Sladburys Lane
Clacton On Sea Essex CO15 6NU.

Outline Planning Application (all matters reserved) - Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.

Dear Amy Lang,

Thank you for your email which provides Essex County Council (ECC) with the opportunity to assess and advise on the proposed landscape and green infrastructure (GI) strategy/plans for the aforementioned planning application.

ECC currently provides advice on green infrastructure schemes (GI) for major developments. ECC have been consultees on GI since 2018. Although there are no statutory requirements for GI, the 25 Year Environment Plan and Environment Act (2021) place significant importance on protecting and enhancing GI, accessibility and biodiversity net gain.

In providing advice we look to ensure that adequate provision, protection and improvements of high-quality GI comply with the objectives and planning principles set out in the following documents:

- Local Planning Authorities (LPA) Green Infrastructure Strategy/ SPD or equivalent green and open space strategies provides further guidance on the LPA's Local Development Plan policies regarding the Council's approach to green infrastructure provision in the local authority area.
- Essex Green Infrastructure Strategy, 2020, aims to enhance the urban and rural environment, through creating connected multi-functional GI that delivers multiple benefits to people and wildlife. It meets the County Council's aspirations to improve GI and green spaces in our towns, city and villages, especially close to areas of deprivation.
- Essex Green Infrastructure Standards, 2022, provide clear guidance on the requirements on both planning policy and planning application and processes.

ECC GI position

Having reviewed the Planning Statement, Ecological Impact Assessment (EIA), Biodiversity Net Gain (BNG) Assessment and the associated documents which

accompanied the planning application, **we do not object** to the granting of 25/01011/OUT. However, we would advise the following recommendations and conditions are considered to further improve the GI/Landscape strategy and help achieve net environmental gains and climate resilient development:

The Planning Statement and BNG Assessment include an illustrative site layout plan indicating potential landscaping proposal. However, the plan does not clearly distinguish between existing habitat features and proposed new planting. While both documents state that boundary hedgerows, trees, bramble scrub, and grassland margins will be retained, and that the landscaping approach is based on enhancing these features, further clarity is needed.

The proposals include Sustainable Drainage Systems (SuDS), areas of neutral grassland with potential for species-rich wildflower mixes, planting of mixed scrub, a circular walking route, vegetated gardens, and the possibility of soft landscaping, hedging, or tree planting along the frontage of some dwellings. It is recommended that detailed Green Infrastructure (GI) and landscape proposals be secured through appropriately worded planning conditions with submission of detailed landscape and GI Strategy and plan.

Biodiversity Net Gain

The BNG Assessment predicts a net loss of -5.65 habitat units (-53.27%) and no change in hedgerow units, resulting in no net gain. There are no watercourses present on site. The loss is primarily attributed to the removal of grassland and a potential rural tree to accommodate the proposed development.

While the post-development habitat plan and the illustrative site layout (Appendix 1 of the BNG Assessment) indicate the potential inclusion of 40 metres of species-rich hedgerow, this feature was not accounted for in the BNG calculation. Additionally, there is an inconsistency in the number of dwellings referenced: the BNG Assessment and EIA describe 29 dwellings, whereas the planning application and Planning Statement refer to 30. It is unclear whether the additional dwelling has been factored into the BNG calculation or how it may affect the available space for landscaping and GI provision.

Despite the potential for additional habitat features, the current BNG calculation does not meet the statutory 10% net gain requirement for habitats. The applicant proposes to address this shortfall through the purchase of off-site biodiversity units, which can be secured via a planning condition.

It is essential the proposal demonstrate the application of the BNG hierarchy to justify why onsite delivery may not be feasible. This hierarchy ensures that all possible measures to avoid, minimise, and compensate for biodiversity loss are thoroughly explored. By adhering to this structured approach, developers can transparently show that offsite solutions are necessary and that they have made every effort to achieve the best possible outcomes for biodiversity, aligning with regulatory requirements and promoting sustainable development.

It is acknowledged that on-site delivery might not always be feasible, and off-site delivery could offer additional benefits, including the protection of areas with local natural and wildlife value. It is recommended to discuss off-site and unit purchases, with Tendring District Council and take into consideration the habitat creation strategic opportunity areas within the [Essex Local Nature Recovery Strategy](#) (2025) for habitats that could become importance for biodiversity. The BNG Assessment should be updated once the landscape provisions for both on-site and off-site areas have been determined and finalised.

Additionally, the EIA recommends considering other ecological enhancements not captured by the metric, such as a bird and bat boxes, planting pollinator species and retention of existing habitat corridors and hibernacula. These enhancement and mitigation measures identified in the EIA and BNG Assessment are instrumental in producing quality GI. Therefore, all these GI elements should be incorporated into the detailed design and secured through suitably worded conditions.

The provision of educational signage is welcomed. Careful consideration should also be given to the inclusion of vegetated/private gardens in BNG calculations. While they can support biodiversity, their long-term value is uncertain due to reliance on resident management and the lack of enforceable maintenance. To help mitigate this, the provision of residential information packs promoting wildlife-friendly gardening could be explored.

Management and Maintenance

It is essential to consider from the outset how GI habitat features will be managed and monitored alongside BNG to ensure effective delivery. The BNG Assessment recommend preparing a Habitat Management and Monitoring Plan (HMMP) to secure the long-term delivery of biodiversity enhancements. The HMMP should ensure BNG and GI goals are met. The assessment provides limited information on the proposed management approach; however, further detail is required to ensure clarity and effectiveness. These and the mitigation measures set out in the EIA are to be secured through suitably worded planning conditions. The ECC GI Team supports the inclusion of these recommendations as planning conditions.

Additionally, it is recommended that clear quality standards be established for both the construction phase and the long-term maintenance of GI. It is advised that a Construction Environmental Management Plan (CEMP) be implemented to mitigate environmental impacts during construction. This plan should outline measures for protecting existing GI features and facilitating the successful establishment of new GI elements. Furthermore, a Landscape and Ecological Management Plan (LEMP) should be prepared to detail the long-term management strategy, including implementation timelines, maintenance activities, funding mechanisms, and monitoring protocols for GI assets.

To ensure satisfactory delivery and long-term management and maintenance of retained and new green infrastructure assets we would recommend the following conditions:

Condition 1

No works shall take place until a detailed Green Infrastructure/ Landscape Strategy for the site, based on the Essex Green Infrastructure Strategy and Essex GI Standards and an assessment of the ecological context of the development, has been submitted to and approved in writing by a Landscape specialist at the Local Planning Authority. The scheme should include but not be limited to:

- Detailed soft landscaping plans specifying species, quantities, and planting sizes.
- Advance planting proposals around construction site.
- A phased implementation timeline for GI and BNG features, where possible.
- The strategy plan should also demonstrate:
 - The development should be designed to deliver Biodiversity Net Gain and wider environmental net gains, that forms a key component of nature recovery networks and the wider landscape scale GI network.
 - Demonstrate that the development site/setting has been reviewed for multiple functions and benefits (listed in the Essex GI Strategy (chapter 5.1, page 35) and ensure that green/open spaces are designed to ensure multi- purpose and functional use.
 - Travel Infrastructure should give consideration to use of GI features to ensure accessibility and attractiveness across the site.
 - Ensure there are good accessible links for all from the development to existing settlements, urban centres, rural areas, active travel networks and green spaces.
 - Demonstrate how the GI has been designed to provide recreational facilities for different user and age groups. It should deliver social inclusive processes that are open to all and incorporate the knowledge and needs of diverse parties.

Reason:

GI and its connectivity are to be at the heart of decision making at every stage in the planning and design process for all developments from the outset, thus GI is integral to place shaping. Planning and design of GI will ensure individual building, street, neighbourhood and landscape scale intervention features contribute to a coherent, meaningful and practical network of high-quality and multi-functional GI, that will provide multiple environment, social and economic benefits within the development and wider area. By ensuring good early design in light of the local context and including local policy context, the GI will more effectively meet local priorities and needs.

The National Planning Policy Framework 2024 paragraph 8c sets environmental protection and enhancement as one of the 3 objectives of the planning system. Paragraph 96(c) states that access to a network of high-quality open spaces and opportunities for sport and physical activity is important for the health and well-being of communities and (paragraph 164(a)) can deliver wider benefits for nature and support efforts to address climate change.

Conditions 2 – 4: Statement of intention for GI delivery and management.

Notwithstanding the details submitted as part of the application, no development shall occur until full details of the proposed GI/Landscape arrangements and access are submitted via the appropriate document, (such as a Landscape Strategy, Construction Environment Management Plan, Landscape and Ecological Management Plan and Habitat Management and Monitoring Plan) and approved in writing by landscape specialist/ecologist at the Local Planning Authority. It is recommended the conditions for the Construction Environment Management Plan, Landscape and Ecological Management Plan and Habitat Management and Monitoring Plan to include the following:

Condition 2

Further information to be included in the Construction Environment Management Plan (CEMP) to outline the protection of retained Green Infrastructure (GI), such as trees and hedges, during construction. The CEMP should also detail how new GI will be implemented in phases, in relation to the development's phasing, to allow for early establishment where feasible.

Reason:

The phased implementation of new GI of the development construction will allow for the GI to mature and it will provide further benefit of reducing/buffering the aesthetic impact from the construction work.

Condition 3

Additional information to be included in the Landscape Ecological Management Plan and work schedule to provide details on the management and maintenance operations for a minimum of 10 years. This plan should include:

- a. who is responsible for GI assets (including any surface water drainage system) and the maintenance activities/frequencies.
- b. how management company services for the maintenance of GI assets and green spaces shall be funded and managed for the lifetime of the development.
- c. The applicant or any successor in title must maintain yearly logs of maintenance which should be carried out in accordance with any approved LEMP/Maintenance Plan. These must be available for inspection upon a request by the Local Planning Authority.

Condition 4

Further information to be included in the Biodiversity Gain Plan and Habitat Management and Monitoring Plan to ensure the agreed biodiversity net gain (BNG) and associated GI goals are achieved. It is essential to consider from the outset how GI habitat features will be managed and monitored alongside BNG to ensure effective delivery.

Reasons:

To ensure measurable net gains and compliance with LPA's Green Infrastructure and Wildlife and Biodiversity Policies allowing the LPA to discharge its duties under the NPPF (2024). GI must be maintained for the development's lifetime as per the approved Maintenance Plan(s). Appropriate management, maintenance, monitoring and funding mechanisms are essential to maintain the GI's value. This ensures GI assets continue to provide high-quality, multi-functional benefits.

Failure to provide the required information before starting work may reduce the development's value, making it undesirable and increasing climate change impacts like flood risk or air pollution.

Other Considerations

New Tree Planting and their early establishment

ECC GI Team will expect that all new trees on new developments will have their establishment considered at the time of planting. This should include weeding, mulching and watering. All newly planted trees with a trunk diameter of 6cm or more will be watered for three years via a buried watering tube, irrigation bag or irrigation well; applying 60 litres per visit, at least 14 times between May and September. Mulch, stakes, ties and weed establishment will also be inspected and actioned as required. Stakes and ties should be removed 3 years after planting.

Sustainable Design

ECCs GI team support a strategy that seeks to maximise opportunity for habitat retention, including the provision of ecological measures set out in EIA. To ensure the integration of nature into development, ECCs GI team recommends sustainable design is explored and consideration of the following: -

- *Bug hotels and log piles*
- *Hedgehog highways – gaps in dwellings fencing.*
- *Wildflower zones and edible planting.*
- Alternatives to low quality, monoculture grasses are explored for amenity areas. The use of mixed/ species rich grass seeds.
- Building in climate resilience as part of the planting mix, not only to provide shading and flood management i.e.
 - Reduce solar glare,
 - Improve building energy efficiency,
 - Provide carbon storage and sequestration,
 - Drought tolerant planting i.e.
 - Xeriscaping: Landscaping with minimal use of water and climate resilient planting.
- GI and SuDs should be developed together to maximise benefits through multifunctionality- they do this by helping to reduce flood risk whilst providing biodiversity and amenity benefits.
- Streets trees should be used alongside other additional tree planting.
 - NPPF Paragraph 136 states “Planning policies and decisions should ensure that new streets are tree-lined, that appropriate measures are in place to secure the long-term maintenance of newly planted trees.

- The provision of residents' information packs to future occupants, offering guidance on how to manage their gardens in a wildlife-friendly manner to support local biodiversity.

Essex Local Nature Recovery Strategy

The Essex Local Nature Recovery Strategy (LNRS) strategy and maps aims to implement county-wide nature recovery initiatives, highlighting key biodiversity areas and opportunities for habitat creation or improvement. The ELNRS features three main types of maps:

- **Strategic Opportunities** - These are areas identified as having potential to become important for biodiversity through habitat creation:
 - Woodland
 - Grassland
 - Scrub
 - Freshwater (Standing Water & River Buffers)
 - Coastal and Marine habitats
- Areas of Particular Importance for Biodiversity (APIBs) - These include nationally and locally designated sites.
- Potential Opportunities – identifies urban and other areas where habitat creation could be beneficial:

Opportunities to enhance biodiversity and create habitats, contributing positively to the local environment. Conservation efforts might be more concentrated on nearby areas identified as top priorities for habitat creation. <https://place-services.maps.arcgis.com/apps/webappviewer/index.html?id=d7e07ae774ea43249765b4b8f6514513%20>

Natural Play

The proposal does not mention the provision for play. ECCs GI team would recommend the consideration of natural play. For this, we would expect play strategies to be formed by the character and function of the green spaces. It should be imaginatively designed using landforms, level changes and water, as well as natural materials such as logs or boulders, which create an attractive setting for play.

Other useful tools

The ECC GI team recommends that the Urban Greening Factor is consulted to establish best practice. The Urban Greening Factor (UGF) is a planning tool to improve the provision of Green Infrastructure (GI) particularly in urban areas. It can be used to increase urban greening and contribute to Biodiversity Net Gain. While it is voluntary, the ECC GI team strongly recommends utilisation of the UGF, and it can significantly contribute to place making, nature recovery, biodiversity enhancement, and connectivity to larger green infrastructure networks within proximity to the development site. More information can be found within the [National Green Infrastructure Framework Standards](#) (2023).

Another useful tool to explore is Natural England's [Environmental Benefits from Nature tool](#). It can be utilised to identify opportunities for enhancing broader benefits from nature while avoiding and minimising negative impacts. It is designed to complement the Biodiversity Metric.

INFORMATIVES:

- Any GI features proposed for adoption by Essex County Council should be consulted on with the relevant Highways Development Management Office.
- It is not within the scope of the GI team to comment on the overall viability of a scheme as the decision is based on a range of issues which are outside of this authority's area of expertise.
- We will advise on the acceptability of green infrastructure and the information submitted on planning applications based on the key documents listed within this letter. However, any relevant information relating to green infrastructure submitted as part of any previous applications should be submitted with the updated information.
- The GI consultation responses provide a high-level review of the proposals onsite. However, the relevant specialists e.g., ecology and landscape specialists should still be consulted on the information submitted. It should be noted that detailed discharge of condition applications should be referred to technical specialists rather than the GI planning team.
- Mitigating and adapting to a changing climate is a national and Essex County Council priority. The Climate Change Act 2008 (amended in 2019) commits the UK to achieving net-zero by 2050. In Essex, the [Essex Climate Action Commission](#) proposed 160+ recommendations for climate action. Essex County Council is working with partners to achieve specific goals by 2030, including net zero carbon development. All those active in the development sector should have regard to these goals and applicants are invited to sign up to the [Essex Developers' Group Climate Charter \[2022\]](#) and to view the advice contained in the [Essex Design Guide](#). Climate Action [Advice guides](#) for residents, businesses and schools are also available.

Please note: This letter is advisory and should only be considered as the opinion formed by specialist staff in relation to this particular matter.

Yours sincerely,

Jayne Rogers
Team: Green Infrastructure
Service: Environment and Climate Action
Essex County Council

Link to Essex GI Standards - <https://www.essexdesignguide.co.uk/supplementary-guidance/essex-green-infrastructure-standards/>